

#	Case Name	Tentative
51	Skinner vs. Nguyen 24-01451051	Motion to Set Aside Dismissal Parties to appear.
53	ACE American Insurance Company vs. Sun Country Yachts 25-01481107	Motion to Consolidate Defendant Antigravity Batteries LLC moves to consolidate the two related matters, <i>Ace American Insurance Company v. Sun County Yachts, et al.</i>, Case No. 30-2025-01481107-CU-PL-CJC, and <i>Catalina Riviera LLC v. Sun Country Marine Group, et al.</i>, Case No. 30-2025-01499779-CU-BC-CJC. For the following reasons, Defendant’s motion is GRANTED. Code of Civil Procedure § 1048(a) provides: “When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions, it may order all the actions consolidated, and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” All that the moving party need show is that the issues in each case are basically the same, and that “economy and convenience” would be served by a joint trial. (See <i>Jud Whitehead Heater Co. v. Obler</i> (1952) 111 Cal.App.2d 861, 867.) The granting or denial of the motion to consolidate rests in the sound discretion of the trial court, and will not be reversed except upon a clear showing of abuse of discretion. (<i>Fellner v. Steinbaum</i> (1955) 132 Cal.App.2d 509, 511.) A noticed motion to consolidate must list all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; contain the captions of all the cases sought to be consolidated, with the lowest numbered case listed first; and be filed in each case sought to be consolidated, served on all attorneys of record and all nonrepresented parties, and include a proof of service. (Cal. Rules of Court, rule 3.350(a); see <i>In re Sutter Health Uninsured Pricing Cases</i> (2009) 171 Cal.App.4th 495, 514.)

		Defendant did not strictly comply with rule 3.350 because the notice of motion was not filed in the related <i>Catalina Riviera</i> action. Although this constitutes a procedural defect, no opposition has been filed and no resulting prejudice has been identified. The Court therefore addresses the merits notwithstanding the procedural defect. The two actions arise from the same November 10, 2023 fire aboard Catalina Riviera, LLC's yacht and involve substantially the same operative facts concerning the yacht's battery and electrical systems. In <i>ACE American Insurance Company v. Sun Country Yachts, et al.</i>, ACE, as Catalina Riviera's subrogating insurer, asserts negligence against Sun Country and strict products liability against Antigravity. In <i>Catalina Riviera LLC v. Sun Country Marine Group, et al.</i>, Catalina Riviera asserts the same claims, along with an additional breach of contract claim against Sun Country arising from the battery conversion agreement. Although the plaintiffs are different and Catalina Riviera asserts an additional contract claim, both actions involve the same incident, defendants, causation issues, witnesses, and expert evidence. Consolidation would therefore avoid duplicative discovery and testimony, conserve judicial resources, and reduce the risk of inconsistent rulings. The motion is unopposed, and the record does not demonstrate undue confusion, delay, or prejudice. The actions are consolidated for all purposes, with <i>ACE American Insurance Company v. Sun Country Yachts, et al.</i>, Case No. 30-2025-01481107-CU-PL-CJC, designated as the lead case. Moving party to give notice.
56	Beck vs. Cournoyer 25-01501489	Demurrer to Amended Complaint Defendant Erin O'Hara Cournoyer's Demurrer to the first cause of action for usury contained within the First Amended Complaint is OVERRULED. As the California Supreme Court explained in <i>Ghirardo v. Antonioli</i> (1994) 8 Cal.4th 791, 798, "The California Constitution, article XV, section 1, states 'No person, association, copartnership or corporation shall by charging any fee, bonus, commission, discount or other compensation receive from a borrower more than the interest authorized by this section upon any loan or forbearance of any money, goods or things in action.' The essential elements of usury are: (1) The transaction must be a loan or forbearance; (2) the interest to be paid must exceed the statutory maximum; (3) the loan and interest must be absolutely repayable by the borrower; and (4) the lender must have a willful intent to enter into a usurious transaction."